



Regulations on the Market Operation of Class X Beneficiary Certificates of a Multiple Class Fund

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Regulations on the Market Operation of Class X Beneficiary Certificates of a Multiple Class Fund

Chapter I. General Provisions

§1. Purpose

The purpose of this Regulation is to stipulate matters necessary for the listing review, management of listed securities, reporting and disclosure of listed entities, and trading of securities in the market for class X beneficiary certificates of a multiple class fund, which is established and operated by the Korea Exchange after receiving the designation as an innovative financial service from the Financial Services Commission pursuant to the Special Act on Support for Financial Innovation.

§2. Opening of Market

(1) The Korea Exchange (hereinafter referred to as the “Exchange”) shall establish the market for class X beneficiary certificates of a multiple class fund (hereinafter referred to as the “market for class X beneficiary certificates of publicly offered funds”) within the KOSPI Market established pursuant to Article 386 of the Financial Investment Services and Capital Markets Act (hereinafter referred to as the “Act”).

(2) The Exchange shall operate the market for class X beneficiary certificates of publicly offered funds for the period (hereinafter referred to as the “designation period”) during which the market is designated as an innovative financial service pursuant to the Special Act on Support for Financial Innovation (hereinafter referred to as the “Financial Innovation Act”).

(3) The Exchange may terminate the operation of the market for class X beneficiary certificates of publicly offered funds upon expiration of the designation period. In this case, the Exchange shall provide prior notice of the termination and take necessary measures, such as delisting, etc.

§3. Definitions

(1) The terms used in this Regulation shall be defined as follows:

1. “Class X beneficiary certificates” refers to a type of beneficiary certificates (hereinafter referred to as “class X beneficiary certificate funds”) that is listed and traded on the market for class X beneficiary certificates of publicly offered funds, among beneficiary certificates issued by a multiple class fund established under Article 231 of the Act by a fund management company, who obtained the designation as an innovative financial service for the listing and trading of class X beneficiary certificates of a multiple class fund under the Financial Innovation Act.
2. “Authorized participant” refers to a person designated as an innovative financial service

provider for the listing and trading of class X beneficiary certificates in accordance with the Financial Innovation Act and designated by a fund management company for the purpose of performing the duties specified in each subparagraph of Article 247 of the Enforcement Decree of the Act.

3. “Liquidity providing member” refers to a member who can submit liquidity providing quotations in accordance with [§17(2)].

(2) The terms, other than those specified in paragraph (1), used in this Regulation shall be in accordance with the relevant laws and regulations, the “KOPI Market Listing Regulations” (hereinafter referred to as the “Listing Regulations”), the “KOSPI Market Business Regulations” (hereinafter referred to as the “Business Regulations”), and the “Membership Regulations.”

Chapter II. Listing of Class X Beneficiary Certificates of a Multiple Class Fund

§4. General Operation of Listing Class X Beneficiary Certificates

(1) With respect to listing by application, prohibition of partial listings, delisting without application for delisting, and documents for listing, etc. of class X beneficiary certificates, [§4], [§6], [§8], and [§10] of the Listing Regulations shall apply *mutatis mutandis*.

(2) A listing applicant (excluding applicants with securities already listed on the market for class X beneficiary certificates of publicly offered funds or the market specified in [§4(1)2] of the Business Regulations) wishing to list class X beneficiary certificates shall enter into a listing agreement with the Exchange in the format prescribed by the Enforcement Rules. In such cases, [§16(2)] of the Listing Regulations shall apply *mutatis mutandis*.

§5. Preliminary Listing Review

(1) The initial listing applicant of class X beneficiary certificates shall submit an application for preliminary listing review, together with the documents prescribed by the Enforcement Rules to the Exchange and undergo a preliminary listing review before applying for an initial listing in accordance with [§6].

(2) The initial listing applicant of class X beneficiary certificates shall consult with the Exchange in advance regarding the procedures and timing of listing before applying for preliminary listing review.

(3) The Exchange shall examine the application for preliminary listing review and the documents submitted by the initial listing applicant in accordance with paragraph (1) for preliminary listing review pursuant to paragraphs (2) and (3) of [§6].

(4) The Exchange shall notify, in writing, the initial listing applicant of the relevant class X beneficiary certificates of the result of the preliminary listing review within twenty (20) days (based on business days) from the date of having received the application for preliminary listing review noted in paragraph (1). Provided that, in case where it is necessary to correct or

supplement the application for preliminary listing review, etc. or an additional review is necessary, the Exchange may extend the notification period by notifying the initial listing applicant of the reasons and estimated processing time.

(5) In the case where, after having notified the initial listing applicant of the result of the preliminary listing review pursuant to paragraph (4), any of the following incidents occurs with respect to the initial listing applicant and it is recognized that the incident has a significant impact on the result of the review, the Exchange may not recognize the validity of the preliminary listing review result:

1. Where matters significant to business operations have occurred;
2. Where it has been identified that important matters on investor protection are falsely stated in or omitted from the application for preliminary listing review; or
3. Where an application for initial listing of class X beneficiary certificates has not been submitted within three (3) months from the date of having been notified of the result of preliminary listing review.

(6) The Exchange shall, when it decides not to recognize the validity of the result of preliminary listing review pursuant to paragraph (5), notify the initial listing applicant of this fact in writing.

(7) In the case where the initial listing applicant submits a written statement to the Exchange setting forth the reasons for withdrawal of the application for preliminary listing review, the Exchange shall terminate the preliminary listing review.

§6. Initial Listing

(1) In cases where the initial listing applicant of class X beneficiary certificates intends to initially list class X beneficiary certificates after passing the preliminary listing review conducted by the Exchange, the applicant shall submit to the Exchange the application for initial listing and supplementary documents prescribed by the Enforcement Rules within three (3) months from the date of having received the result of preliminary listing review. Provided that, if the initial listing applicant requests an extension of the submission deadline due to unavoidable reasons such as a sudden change in market conditions and the Exchange approves the request, the submission deadline may be extended once for up to three (3) months.

(2) To list class X beneficiary certificates, all of the following review requirements shall be met:

1. Size of the class X beneficiary certificate funds: The trust principal or total net assets of class X beneficiary certificate funds to be listed must be at least KRW 7 billion, and the total number of class X beneficiary certificates to be issued or converted must be at least 1 billion units;
2. Size of the multiple class fund: The trust principal or total net assets of the multiple class fund that has issued class X beneficiary certificates to be listed must be at least KRW 50 billion. Provided that this may not apply to cases specified in the Enforcement Rules.

3. Authorized participants, etc.: All of the following requirements must be met:

- (a) There must be at least one (1) authorized participant;
- (b) A liquidity provision agreement must be entered into with at least one (1) liquidity providing member among authorized participants pursuant to [§17(1)];
- (c) If the fund management company that operates class X beneficiary certificates lists other class X beneficiary certificates on the market for class X beneficiary certificates of publicly offered funds, all of the following requirements shall be met:
 - (i) If some of the liquidity providing members for any of the relevant listed issues meet the liquidity providing member replacement criteria under [§20] (hereinafter referred to as the “liquidity providing member replacement criteria”), at least three (3) months shall have elapsed since then; and
 - (ii) If all of the liquidity providing members for any of the relevant listed issues meet the liquidity providing member replacement criteria, at least six (6) months shall have elapsed since then.

4. Included Assets: Assets included in the multiple class fund must be traded in any of the following markets. In this case, the details must be stated in the fund agreement:

- (a) An exchange market, a foreign exchange market, or a market designated and announced by the Financial Services Commission pursuant to Article 7-26 of the Financial Investment Business Regulations;
- (b) A market similar to item (a), which falls under any of the following:
 - (i) A precious metals market operated pursuant to the regulations of the London Bullion Market Association (LBMA);
 - (ii) An over-the-counter bond market and a similar foreign bond market operated pursuant to Articles 179, 180, and 185 of the Enforcement Decree of the Act;
 - (iii) A market in which a foreign exchange brokerage firm calculates the base exchange rate and the arbitrated exchange rate pursuant to the Foreign Exchange Transactions Act pursuant to Article 9, Paragraph 2 of the Foreign Exchange Transactions Act; and
 - (iv) Any other market recognized by the Exchange, taking into account factors such as

reliable price formation.

5. Duration: Except for cases stipulated by the Enforcement Rules, class X beneficiary certificate funds shall have no duration. In this case, the details thereof (including the duration of the fund, if any) must be stated in the fund agreement.

(3) The Exchange shall comprehensively consider the following factors to determine whether it is appropriate to list class X beneficiary certificates that meet the requirements of paragraph (2);

1. The product structure, etc. must be legal under relevant laws and regulations;
2. The continuity of class X beneficiary certificates must be recognized in light of the efficient operation of included assets, etc.;
3. The initial listing applicant must demonstrate transparency in its internal control system and disclosure system related to the operation of class X beneficiary certificates;
4. Investor protection measures must be included in the fund agreement, etc., in preparation for delisting pursuant to subparagraphs 6 through 8 of [§9]; and
5. In addition, the listing of class X beneficiary certificates must be recognized as not detrimental to the sound development of the KOSPI Market.

(4) After the review pursuant to paragraphs (2) and (3) is completed, the Exchange shall notify the initial listing applicant of whether or not the initial listing has been approved.

(5) In cases where, as a result of the review pursuant to paragraphs (2) and (3), it is determined that the listing of the relevant class X beneficiary certificate is not appropriate for the realization of public interest and investor protection, the Exchange may refuse to list them.

(6) Matters necessary for the submission of documents pursuant to paragraph (1) and the listing review pursuant to paragraph (3) shall be prescribed by the Enforcement Rules.

§7. Supplementary Listing and Listing Change

(1) If a listed entity wishes to issue new class X beneficiary certificates identical to those of an already listed issue, it shall submit an application for supplementary listing and accompanying documents stipulated by the Enforcement Rules to the Exchange without delay after the registration of securities issuance becomes effective.

(2) In cases of changes in the name or quantity of the relevant class X beneficiary certificates (limited to changes in quantity due to redemption), the listed entity shall submit to the Exchange, without delay, an application for listing change and accompanying documents stipulated by the Enforcement Rules after the grounds for the listing change become effective.

(3) Notwithstanding paragraphs (1) and (2), in the case where a listed entity wishes to

make a supplementary listing or a listing change due to a change in quantity, it shall submit the relevant application to the Exchange by the trading day immediately before the scheduled date of listing.

§8. Designation of Administrative Issues

(1) The Exchange shall, where a class X beneficiary certificate falls under any of the following subparagraphs, designate the relevant certificate as an administrative issue:

1. Where the total trust principal amount as of the end of the first half of a class X beneficiary certificate (excluding securities that have not passed one (1) year from the listing date) is less than KRW 5 billion and the total net assets (the amount calculated by subtracting the total liabilities from the total assets of the class X beneficiary certificate fund; the same shall apply hereinafter) is less than KRW 5 billion;
2. Where a listed entity receives a corrective order from the Financial Services Commission pursuant to Article 7 of the Financial Innovation Act;
3. Where a listed entity requests the Financial Services Commission to revoke the designation as an innovative financial service pursuant to Article 8 of the Financial Innovation Act;
4. Where a listed entity receives an order from the Financial Services Commission to suspend innovative financial services pursuant to Article 11 of the Financial Innovation Act; or
5. Other cases where the Exchange deems that designation as an administrative issue is necessary for the sake of public interest and investor protection.

(2) The Exchange shall, where any of the following cases apply after a class X beneficiary certificate has been designated as an administrative issue pursuant to paragraph (1), revoke such designation without delay:

1. In the case of paragraph (1)1: If the relevant ground has been resolved as of the end of the semi-annual period to which the date of designation of administrative issue belongs;
2. In the case of paragraph (1)2: If the Exchange recognizes that the relevant corrective order has been complied with;
3. In the case of paragraph (1)3: If it has been confirmed that the relevant withdrawal request has been canceled;
4. In the case of paragraph (1)4: If it has been confirmed that the resumption of services has been permitted pursuant to Article 11, Paragraph 2 of the Financial Innovation Act; or
5. In the case of paragraph (1)5: If it has been confirmed that the relevant ground for designating a class X beneficiary certificate as an administrative issue has been resolved.

(3) Necessary matters regarding the timing of designation and revocation of an administrative issue pursuant to paragraphs (1) and (2) shall be prescribed by Enforcement Rules.

§9 Delisting

In cases where a class X beneficiary certificate falls under any of the following subparagraphs, the Exchange shall delist the relevant certificate:

1. Where the requirements of [§6(2)3(b)] are not met;
2. Where all liquidity providing members of the relevant class X beneficiary certificate fail to enter into a liquidity providing agreement with another liquidity providing member pursuant to of [§6(2)3(b)] within one (1) month from the date on which the liquidity providing member replacement criteria are met;
3. Where the class X beneficiary certificate falls under [§8(1)1] and is designated as an administrative issue, the grounds for such designation persist as of the next semi-annual end;
4. Where the reporting obligations under [§14] are intentionally, grossly negligently, or habitually violated;
5. Where the grounds for termination of an investment trust pursuant to Article 192, Paragraph 1 or 2 of the Act are met;
6. Where the designation of an innovative financial service of a listed entity is revoked pursuant to Article 7 of the Financial Innovation Act;
7. Where the designation period for an innovative financial service of a listed entity expires pursuant to Article 9 of the Financial Innovation Act;
8. Where the operation of the market for class X beneficiary certificates of publicly offered funds is terminated; or
9. Other cases where the Exchange recognizes that delisting the class X beneficiary certificate is necessary for the purpose of realizing the public interest and investor protection.

§10. Suspension of Trading and Resumption Thereof

(1) In cases where a listed entity or a listed security falls under any of the following subparagraphs, the Exchange may suspend the trading of the relevant security:

1. Where the grounds for delisting apply pursuant to each subparagraph of [§9]; or
2. Other cases where the Exchange deems it necessary for the public interest and investor

protection.

(2) The period of trading suspension pursuant to paragraph (1) shall be until the date on which the grounds for the trading suspension are recognized as resolved.

§11. Prior Notice and Public Announcement on Administrative Issues

(1) In cases where a listed security is concerned to be designated as an administrative issue, the Exchange may make public notice on the fact thereof.

(2) In the case of designating a listed security as an administrative issue or revoking such designation, the Exchange shall officially announce the details thereof via electronic information delivery mechanism.

(3) With respect to a listed security that is an administrative issue, the Exchange may assess its status for the listing management such as disclosure for investor protection and shortening of the delisting period.

§12. Prior Notice and Public Announcement on Delisting

(1) In cases where a listed security falls under any of the following subparagraphs, the Exchange may give prior notice that the listed security may fall under the grounds for delisting until such security actually falls under the grounds for delisting:

1. Where the conditions for liquidity provider replacement are met;
2. Where delisting is expected due to the grounds for termination of the investment trust under Article 223, Paragraph 3 or 4 of the Enforcement Decree of the Act; or
3. Where the fund agreement specifies the fund's duration, and one (1) month has passed retroactively from the expiration date of such duration.

(2) In cases where a listed security falls under the grounds for delisting pursuant to this Regulation, the Exchange shall inform the relevant entity of such fact, the methods and procedures for delisting, and other necessary matters in writing without delay.

(3) When the Exchange intends to delist a listed security, it may make an official announcement of such delisting.

(4) With respect to the prior notice on delisting noted in paragraph (1), in the case of having confirmed through objective materials that the grounds for such prior notice were resolved, the Exchange may terminate such prior notice from the date of confirmation of the relevant fact.

§13. Public Announcement on Noncompliance with Obligations

In cases where a listed entity fails to fulfill its obligations or to submit documents under this

Regulation, the Exchange may officially announce such fact.

Chapter III. Reporting and Disclosure of Listed Entities with Class X Beneficiary Certificates of a Multiple Class Fund

§14. Reporting Obligations, etc.

(1) In the event where the cause falling under any of the following subparagraphs has occurred, a listed entity shall report the details thereof to the Exchange by the deadline specified in each subparagraph:

1. Distribution of profits: Fifteen (15) days before the end of the trust accounting period;
2. Net asset value and details of asset composition prescribed in the Enforcement Rules: On a daily basis
3. Matters on included assets specified in the Enforcement Rules; Within one (1) month from the last day of each month;
4. In cases where an application for delisting is expected due to the grounds for delisting of an investment trust under Subparagraph 3 or 4 of Article 223 of the Enforcement Decree of the Act: One (1) month prior to the scheduled date for delisting;
5. In cases where the duration is stipulated in the fund agreement and delisting is scheduled as the expiration of such duration constitutes the grounds for the termination of the investment trust: One (1) month prior to the scheduled date for delisting;
6. In any of the following cases: Without delay
 - (a) Where a corrective order has been issued by the Financial Services Commission pursuant to Article 7 of the Financial Innovation Act or such order has been complied with;
 - (b) Where a request for withdrawal of designation as an innovative financial service has been submitted to the Financial Services Commission pursuant to Article 8 of the Financial Innovation Act or such request has been canceled;
 - (c) Where an order to suspend innovative financial services or a permission to resume such services has been issued by the Financial Services Commission pursuant to Article 11 of the Financial Innovation Act; or
 - (d) Where designation as an innovative financial service of a listed entity has been canceled pursuant to Article 7 of the Financial Innovation Act.

7. Where the period of designation as an innovative financial service of a listed entity expires pursuant to Article 9 of the Financial Innovation Act: One (1) month prior to the expiration date of the designated period;
 8. In any other cases prescribed by the Enforcement Rules: Without delay, as cases where the Exchange deems such action necessary for listing management.
- (2) A listed entity shall submit business reports and financial statements to the Exchange by the statutory submission deadline.
- (3) A listed entity shall appoint employees responsible for the reporting and document submission tasks prescribed by paragraphs (1) and (2), and designate a responsible person among these employees. In such cases, when designating or changing such employees or responsible person, the relevant listed entity shall notify the Exchange of the details.

Chapter IV. Market Operation, Trading, Clearing and Settlement, etc.

§15. Application of Regulation

- (1) Except as otherwise provided in this Regulation and Enforcement Rules, regulations applicable to the market for ETF funds and ETF funds, among the Business Regulation and the Securities Market Clearing and Settlement Business Regulation (hereinafter referred to as the “Clearing and Settlement Business Regulation”) (including the Enforcement Rules and related guidelines for each regulation), shall apply to the market for class X beneficiary certificates of publicly offered funds and class X beneficiary certificates. Provided that [§87(2)] of the Business Regulation shall not apply to class X beneficiary certificates.
- (2) Class X beneficiary certificates shall not be considered substitute securities under [§88] of the Business Regulation.

§16. Limits on Quotation Prices

- (1) The quotation prices of class X beneficiary certificates shall neither be higher than the price obtained by adding the price change limit (hereinafter referred to as “upper limit price”) to the reference price (referring to the price used as the basis for determining the price change limit; the same hereinafter) determined by in the Enforcement Rules nor lower than the price obtained by subtracting the price change limit from the reference price (hereinafter referred to as “lower limit price”). Provided that, if the price obtained by adding or subtracting the price limit from the reference price is not appropriate as the upper or lower limit price, the upper or lower limit price may be determined differently by the Enforcement Rules.
- (2) The price change limits noted in paragraph (1) shall be equal to the amount calculated by multiplying the reference price by 0.3 (Any amount less than the tick size of the reference price shall be disregarded; the same hereinafter in this Article). Provided, however, that where the obtained amount is less than the minimum tick size, it shall be set at the minimum tick size.

(3) In the cases prescribed by the Enforcement Rules, notwithstanding paragraph (2), the price change limits may be determined differently.

§17. Liquidity Providing Members

(1) A member, who has entered into an agreement for liquidity provision with a listed entity, may submit quotations for liquidity provision (hereinafter referred to as the “liquidity providing quotations”) for the relevant issues during the regular session.

(2) The members who are eligible for submission of liquidity providing quotations pursuant to paragraph (1) shall meet each of the following requirements:

1. Be a clearing member authorized to conduct investment trading business and qualify as an authorized participant under Article 247 of the Enforcement Decree of the Act;
2. Appoint an employee in charge of liquidity provision;
3. In any of the following cases, at least one (1) year shall have elapsed since the occurrence of the relevant incident:
 - (a) Where the results of assessments carried out pursuant to [§20] show the lowest grade for three (3) consecutive times; or
 - (b) Where it is confirmed that the member has been subject to a criminal sanction or any measures equivalent to or heavier than business suspension or trading suspension for violating relevant securities-related statutes or the business regulations of the Exchange in the course of performing the tasks of liquidity provision.

(3) In cases where a member fails to meet the requirements specified in paragraph (2)1, such member shall be prohibited from submitting liquidity providing quotations from the time of such failure, and in cases where a member fails to meet the conditions prescribed by paragraphs (2)2 or (2)3, such member shall be prohibited from submitting liquidity providing quotations from the completion of the term of agreement for liquidity provision entered into before such failure.

(4) In addition to paragraphs (1) through (3), matters necessary for liquidity providing members shall be prescribed by the Enforcement Rules.

§18. Obligation to Submit Liquidity Providing Quotations

(1) In cases where the bid-ask spread or bid-ask spread ratio based on the best quotation price (referring to the lowest ask price and the highest bid price among quotations other than mid-price quotations; the same hereinafter) during the trading hours of the regular session exceeds the limit specified in each of the following subparagraphs (including cases where there is no bid or ask quotation on one or both sides), liquidity providing members shall submit liquidity providing quotations within five (5) minutes of such occurrence.

1. For listed securities whose fund invests exclusively in domestic assets: a ratio not exceeding 2%, as reported to the Exchange by listed entities; or
2. For other listed securities: a ratio not exceeding 3%, as reported to the Exchange by listed entities.

(2) In order for the price of class X beneficiary certificates to converge to the net asset value per 10,000 units, liquidity providing members shall submit liquidity providing quotations so that the deviation ratio calculated according to the following formula does not exceed 3% (in the case of securities falling under paragraph 1(2), it shall be 6%; the same hereinafter).

Deviation ratio (%) = $\frac{[(\text{Closing price} - \text{Net asset value per 10,000 units}) / \text{Net asset value per 10,000 units}] \times 100}{10,000 \text{ units}}$

(3) “The bid-ask spread” noted in paragraph (1) shall refer to the price difference between the ask quotation and the bid quotation, and “the bid-ask spread ratio” shall refer to the ratio of the bid-ask spread to the bid quotation price.

(4) Notwithstanding paragraph (1), a liquidity providing member may not submit liquidity providing quotations in cases specified in the Enforcement Rules.

§19. Method of Submitting Liquidity Providing Quotations

(1) In cases where a liquidity providing member places liquidity providing quotations for class X beneficiary certificates, such member shall submit liquidity providing quotations through the separate account that has been established beforehand.

(2) In cases where a liquidity providing member submits liquidity providing quotations for one side of the ask or bid quotations for class X beneficiary certificates, such member shall submit liquidity providing quotations for the other side without delay. Provided that this shall not apply to the cases specified in the Enforcement Rules.

(3) The quantity of liquidity providing quotations for class X beneficiary certificates, restrictions on submission of liquidity providing quotations, and other necessary matters regarding liquidity providing quotations for class X beneficiary certificates shall be determined by the Enforcement Rules.

§20. Assessment of Liquidity Providing Members

(1) The Exchange may assess the effectiveness of liquidity provision by members and publicly announce the outcome of such assessment, as prescribed by the Enforcement Rules. In such cases, if the results of assessment regarding compliance with the obligation to submit liquidity providing quotations has been fulfilled pursuant to [§18(1)] fall within the criteria prescribed by the Enforcement Rules, the Exchange may ask the relevant listed entity to replace the liquidity providing member.

(2) Liquidity providing members shall provide the Exchange with the materials required for

the assessment pursuant to paragraph (1), as prescribed by the Enforcement Rules.

§21. Quotation Unit and Trading Unit

The quotation quantity unit, tick size, and trading unit of class X beneficiary certificates shall be specified by the Enforcement Rules.

§22. Change of Trade Execution Methods, etc. by Issue

(1) In cases where the provisional execution price determined by the quotations for class X beneficiary certificates falls under any of the following subparagraphs, the Exchange may change the trade execution method for the relevant issue to the call auction under [§23] of the Business Regulations or expand the quotation range participating in call auctions (hereinafter referred to as “change of trade execution method, etc.”).,

1. Where the price rises or falls by more than the rate specified in the Enforcement Rules based on the most recent price as of the time of receipt of the relevant quotation during the trading hours of a regular session (excluding the opening auction) and that of the after-hours sessions (limited to after-hours call auction); and
2. Where the price rises or falls by more than the rate specified in the Enforcement Rules based on the most recent price as of the time of receipt of the relevant quotation (limited to the price determined by a call auction pursuant to [§23] of the Business Regulations; during the opening auction, it shall refer to the reference price of the day) during the trading hours of a regular session.

(2) Necessary matters concerning the change of the trade execution method referred to in paragraph (1) shall be determined by the Enforcement Rules.

Chapter V. Supplementary Provisions

§23. Listing Fees and Annual Dues

(1) An applicant for the listing of class X beneficiary certificates shall pay a listing fee, and a listed entity shall pay annual dues as long as the securities remain listed. Provided that the Exchange may exempt the payment of the listing fee or annual dues in cases it deems necessary.

(2) With respect to the listing fees and annual dues noted in paragraph (1), the rate of the listing fee, the methods for calculation and payment, the scope of exemption and other necessary matters shall be specified by the Enforcement Rules.

§24. Enforcement Rules

Matters necessary for implementing this Regulation shall be prescribed by the Enforcement Rules.

ADDENDA

(Regulation No. 2319 / March 26, 2025)

§1. Effective Date

This Regulation shall become effective from the date specified in the Enforcement Rules of this Regulation.

§2. Effective Period

This Regulation shall remain in effect until the end of the period during which the listing and trading of class X beneficiary certificates are designated as innovative financial services pursuant to the Special Act on Support for Financial Innovation.

§3. Application of Provisions Concerning Initial Listing Application

The provisions of Chapter 2 regarding the listing of class X beneficiary certificates shall also apply to entities that submit an application for preliminary listing review prior to the effective date of this Regulation.